

The Doğans urge us to adopt the Fourth Circuit’s approach. But we need not decide the level of deference owed to the State Department’s suggestion of immunity in this case, because even if the suggestion of immunity is afforded “substantial weight” (as opposed to absolute deference), based on the record before us we conclude that Barak would still be entitled to immunity. Common-law foreign sovereign immunity extends to individual foreign officials for “acts performed in [their] official capacity if the effect of exercising jurisdiction would be to enforce a rule of law against the state[.]” Restatement (Second) of Foreign Relations Law § 66(f) (1965). According to the Complaint, Barak was “instructed by the Prime Minister to conduct” the operations. The Complaint further alleged that Barak’s “power . . . to plan, order, and control the IDF operation and troops as Minister of Defense is set out in Israel’s Basic Law[.]” The Complaint’s claims for relief state—several times—that Barak’s actions were done under “actual or apparent authority, or color of law, of the Israeli Ministry of Defense and the Government of the State of Israel.” And if the State Department’s SOI is not entitled to absolute deference, we would nonetheless give it considerable weight. We conclude that exercising jurisdiction over Barak in this case would be to enforce a rule of law against the sovereign state of Israel, and that Barak would therefore be entitled to common-law foreign sovereign immunity even under the Doğans’ preferred standard (i.e., conducting an independent judicial determination of entitlement to immunity).

III

Next, the Doğans argue that even if Barak is entitled to common law immunity, Congress has abrogated common